

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602736	MENDEZ VS ROA	DEMURRER

Tentative Ruling:

SUSTAIN the demurrer to the 5th, 7th and 8th causes of action, with 30 days leave to amend. For Fraud/Concealment, Plaintiff fails to allege sufficient facts. Plaintiff's statement that she "reasonably relied" is conclusory. Plaintiff must provide specific statements, dates, communications, omissions, reliance, and damages. For the court to impose a Constructive Trust (7th cause of action), Plaintiff must prove that the Defendant's acquisition of Plaintiff's property was wrongful, but Plaintiff, in paragraph 74 of the Complaint, refers only to "property belonging to Decedent by wrongful acts." This is not sufficient to identify the specific res or a right to that res. A cause of action for Unjust Enrichment will not lie where there is an express binding agreement between the parties that defines the parties' rights. Here, in paragraph 76 of the Complaint, Plaintiff alleges only that "Defendants received benefits at Decedent's expense under circumstances making it unjust for Defendants to retain such benefits." Plaintiff does not allege the lack of an enforceable agreement, Defendant's receipt of a specific benefit, or the circumstances requiring restitution.

All other causes of action have been sufficiently pled. OVERRULE the demurrer.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602736	MENDEZ VS ROA	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

DENY Defendant's request to strike paragraphs 53, 57, and causes of action 4 and 5. The elder abuse-neglect claims and the elder financial abuse claims are sufficient to support punitive damages.

DENY the request for a STAY.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2507444	LIVINGSTONE VS MURRIETA HOT SPRINGS RESORT LP	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

GRANT Defendant Murrieta Hot Springs Resort, L. P's ("Resort") Motion to Strike the punitive damages allegations in the First Amended Complaint (FAC), Prayer for Relief, "B", with 30 days leave to amend.

The Resort now moves to strike the prayer for punitive damages on the grounds that the pleading contains no material facts supporting an award of punitive damages against the Resort. The only causes of action against the Resort are the 1st cause of action (Negligence) and the 2nd cause of action (Negligent Supervision, Hiring or Retention).

Where the defendant is a corporate employer, punitive damages may not be awarded based on the acts of an employee unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which punitive damages are sought. Civ. Code § 3294(b). The conduct attributed to Defendant Deyvon Cobb does not, without more, expose the Resort to punitive damages on the negligence-based causes of action. Even gross negligence and recklessness are not enough to support a claim for punitive damages.

Here, Plaintiff's allegations that the Resort "knew or should have known" that Cobb was unfit (FAC Paras. 37-39) and that the Resort's "officers, directors, and/or managing agents...ratified, accepted the benefits of, condoned, lauded, acquiesced, authorized and otherwise approved of the conduct alleged herein" (FAC Para.10) do not supply the ultimate facts required by Civ. Code § 3294(b). The FAC does not identify any officer, director, or managing agent of the Resort. It does not allege what any such person knew about Cobb before the incident. And it does not allege any facts describing an act of authorization or ratification after the incident. Ratification and managing agent status are ultimate facts that must be pled with supporting factual allegations, not simply asserted in the conjunctive as legal conclusions. While it is true that the "clear and convincing" burden of proof is a trial standard, that does not mean the Plaintiff does not have to allege in the pleading ultimate facts that, if proven, would support an award for punitive damages.